

See also: The Geneva Conventions 152–155 ■ The Hague Conventions 174–177 ■ The Nuremberg trials 202–209
 ■ The Genocide Convention 210–211 ■ The United Nations and International Court of Justice 212–219

the way that armies fight and other issues around a conflict, such as the treatment of prisoners of war. War may involve killing, but engaging in conduct such as ordering troops to kill enemy soldiers running away or surrendering—as Rwandan commander Bosco Ntaganda did in eastern Congo—is a war crime.

In 2016, the ICC convicted Ahmad al-Mahdi for the war crime of intentionally targeting religious and cultural sites in Timbuktu during fighting between insurgents and government forces in Mali.

Crimes against humanity differ from war crimes in that their target is civilians, not soldiers. Murder, enslavement, torture, deportation, and a number of other practices are considered a crime against humanity if they are perpetrated in an organized armed attack against a civilian population and if the commanding officer of the group carrying out that armed attack had knowledge, or ought to have known, of the attack. Sexual violence and the punishment of civilians are classified as crimes against humanity.

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Jurisdiction of the court shall be limited to the most serious crimes of concern to the international community as a whole.

Article 1 of the Rome Statute of the ICC, 1998

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Since 2016, more than 1 million Rohingya people of western Myanmar have been forced out of their country in what the UN has called an act of ethnic cleansing.

In both Kenya (2007–2008) and the Ivory Coast (2010–2011), organized violence in election campaigns—including mobs murdering political rivals and opposition supporters being beaten up—was deemed to constitute a crime against humanity. Prior to his death in 2011, the ICC was investigating Colonel Muammar Gaddafi for ordering armed retaliation against protestors. In 2019, the ICC agreed to open an investigation into whether the forcible deportation of the Rohingya people from the north of Myanmar is a crime against humanity.

Genocide is an attempt to destroy in whole or in part an ethnic or religious group. It was originally codified in the Genocide Convention in 1948. People have been prosecuted for genocide in the special tribunals in Rwanda and the former Yugoslavia. The ICC has only charged one person with genocide to date: former Sudanese president Omar al-Bashir, who was charged in 2010.

The crime of aggression is the use of armed force by one state against the “sovereignty, territorial integrity, or political independence” of another. Unlike the other crimes, aggression deals with the process of starting wars. It was not included in the original draft of the Rome Statute, but in 2010, the Statute was modified to include it. It was only activated in 2017, when enough states agreed to the definition.

Who the ICC can prosecute

Because the ICC does not have the capacity to prosecute every single international crime, it focuses on the most serious cases and on those who have what it terms “superior responsibility.” Article 28 of the Rome Statute makes a military commander responsible for the crimes of the soldiers under their command and makes political leaders responsible for controlling the police and military in their country. When a country signs up to the ICC, it is expected to incorporate all of the definitions of international crimes within the Rome Statute »

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We can always do more. We can always do better. And we should not rest as long as there is one perpetrator that did not answer for his crimes.

Judge Song Sang-hyun
 Former president of the ICC (1941–)

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